

26NNCV03315 26NNCV03315

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 26NNCV03315 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

PETITION FOR ORDER RELEASING PROPERTY FROM CLAIM OF
MECHANIC'S LIEN

Hearing Date: 07/17/26

CASE NO./NAME: 26NNCV03315

One Stop Shop, Inc. v. Angel, et al.

Moving Party: Defendants

Robert Angel and Linda Angel

Responding Party: Plaintiff One Stop Shop, Inc.

Notice: Sufficient

Ruling: DENIED

as MOOT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the

hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a breach of contract case. On April 28, 2026, Plaintiff One Stop Shop, Inc. ("Plaintiff") filed a complaint against Defendants Robert Angel and Linda Angel (collectively "Defendants"), alleging five causes of action for: (1) Foreclosure of Mechanic's Lien; (2) Breach of Contract; (3) Open Book Account; (4) Account Stated; and (5) Reasonable Value of Goods and Services.

On June 9, 2026, Defendants filed the instant Petition for Release of Property from Claim of Mechanic's Lien. The Petition seeks an order releasing real property located at 939 North Hill Avenue, Pasadena, California 91104 ("Subject Property") from a mechanic's lien filed on February 11, 2026. (Pet., ¶¶ 1, 4.)

Plaintiff filed an opposition on July 8, 2026.

LEGAL STANDARD

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." (Civ. Code, § 8480, subd. (a).)

A claimant must commence an action to enforce a lien within 90 days of recording the lien. (Civ. Code, § 8460, subd. (a).) Section 8460 further provides that "[i]f the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable." (Civ.

Code, § 8460, subd. (a).) Section 8460 also provides that the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property. (Civ. Code, § 8460, subd. (b).)

DISCUSSION

Defendants

petition for release of the mechanic's lien against the Subject Property, on the basis the lien is unenforceable, void, or voidable due to the lien being asserted against the wrong property.

(Pet., ¶ 13.)

On July 8, 2026,

Elie Haddad, the President of One Stop Shop, Inc., filed a declaration with proof of the release of the mechanic's lien on the Subject Property. (Haddad Decl., ¶ 2, Ex. A.) Therefore, the Court finds the Petition is MOOT.

Defendants also request reasonable

attorneys' fees under Civil Code section 8488, subdivision (b), in demanding said release from Plaintiff and in bringing the Petition in an amount to be determined by motion after entry of judgment. (Pet., ¶ 13.) The Court instructs Defendants to file a noticed motion on attorneys' fees.

CONCLUSION

AND ORDER

Defendants'

Petition for Order Releasing Property from Mechanic's Lien is DENIED as MOOT.

MOVING PARTY

shall

provide notice of this order.